

International Businness Law and EU Law

Introduction to International Business Law

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1. Introduction to International Business Law (10.10.2025)
   - International Relations
   - International Political Economy
   - International Business Law
2. Sources of Law and Economic Order (17.10.2025)
   - Conflict of laws
   - Subjects of International Business Law



3. Law of the EU (24.10.2025)

- History of European Law, Organs of the EU
- Legal sources and order of the EU, fundamental rights
- Lawmaking, enforcement of EU law, legal protection, market freedoms, and policies of the EU

4. WTO (31.10./7.11.2025)

5. Business simulation (14.11.2025)

Structure

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5. International Contract Law (21.11.2025)

- ROME I-VO
- UN Sales Law
- INCOTERMS

6. International Trade Policy (28.11.2025)

7. Foreign Trade Law, International financial policy (5.12.2025)

9. Presentations (12.12., 19.12., 9.1.2026)



Structure

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1. History of European law, institutions of the EU
2. Legal sources and order of the EU, fundamental rights
3. Lawmaking, enforcement of EU law, legal protection, market freedoms and EU policies

Historical development of the EU

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The name **Europa** is known from Greek mythology: There, the story is told of the daughter of the Phoenician king Agenor, who is abducted to Crete (i.e. the Western world) by Zeus, who has turned into a bull.



Historical development of the EU

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After the Second World War, a euphoria of mutual mergers broke out at the international level and a whole series of important international organisations were founded, such as the **UN** in 1945, **GATT** (General Agreement on Tariffs and Trade, a kind of institutionalised cooperation concerning individual areas of world trade) and the **OEEC** (which coordinated the economic aid of the **Marshall Plan** and was the predecessor of the **OECD**, which was created in 1960) in 1948, **NATO** and the **Council of Europe** in 1949.











Historical development of the EU

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In 1946, the proposal by **Winston Churchill** for overcoming fascism and to solve the reconstruction programme, "***European Confederation***", presented

"In this urgent work France and Germany must take the lead together. Great Britain, the British Commonwealth of Nations, mighty America — and, I trust, Soviet Russia, for then indeed all would be well — must be the friends and sponsors of the new Europe and must champion its right to live. Therefore I say to you "Let Europe arise!"

Winston Churchill, Zurich, 9 September 1946



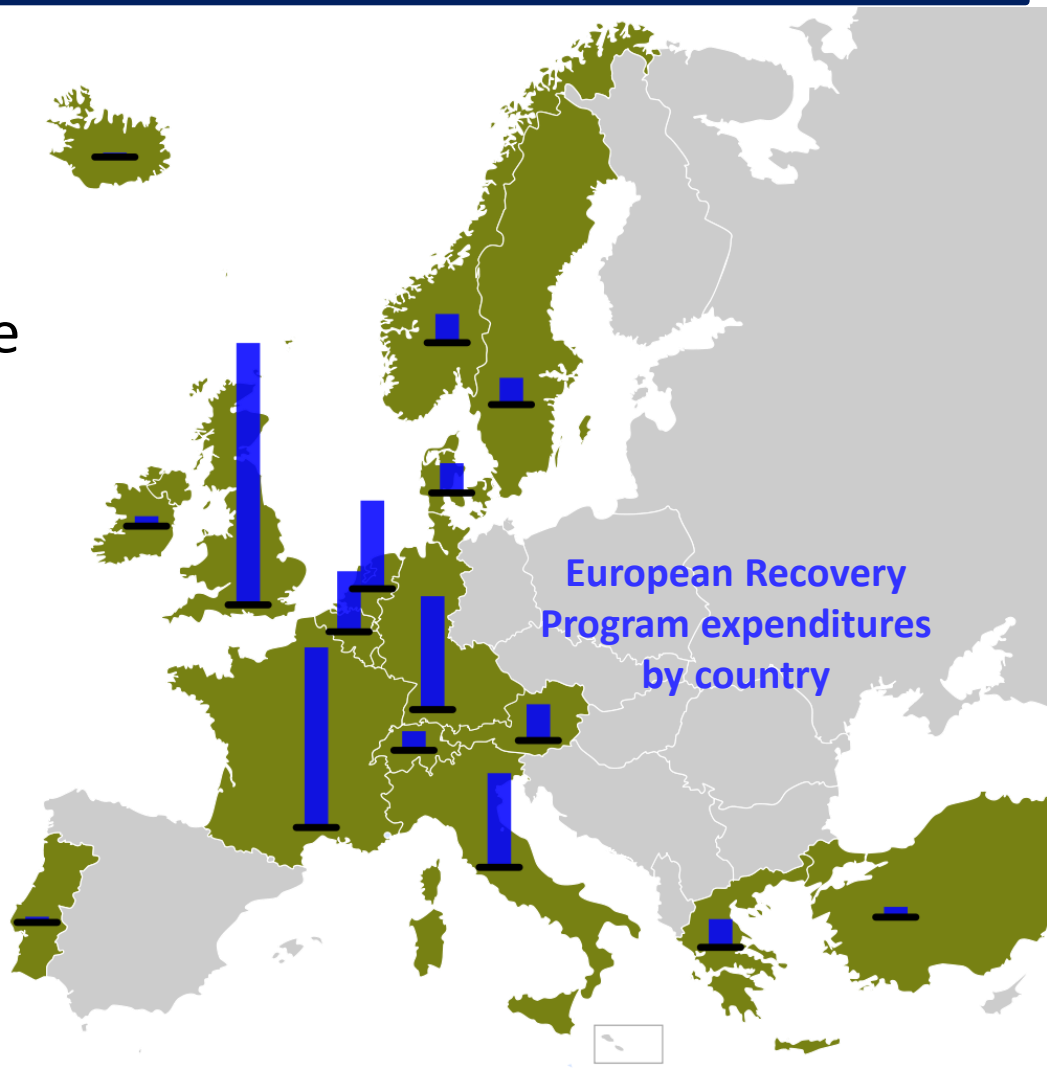
Historical development of the EU

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In 1947, the American Secretary of Secretary of State **George C. Marshall** developed the so-called "**Marshall Plan**" which was subject to the condition that the European states had to agree among themselves on the most appropriate use of funds.
Early concrete precursors of the Europe concept



FOR EUROPEAN RECOVERY
SUPPLIED BY THE
UNITED STATES OF AMERICA



Historical development of the EU

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Founding of the **European Coal and Steel Community**

- From France's point of view, Germany's integration indispensable for European peace
- The idea of merging the heavy industries of France and Germany
- **Jean Monnet** developed the plan in 1950 to improve the overall economic development by rationalising the coal and steel industries.
- Large common market-merger of the heavy industries of Germany and France including a common supervisory body
- Announcement of the plan on 9.5.1950 by Foreign Minister **Robert Schumann** - later the **Schumann Plan**
- 9. 5. 1950 Birthday of the EU



Historical Development of the EU

- Thereupon Treaty establishing the **European Coal and Steel Community** with the following founding states: **France**, **Germany**, **Italy**, **Belgium**, **Netherlands**, **Luxembourg**.
- Signed on 18.4.1951, came into force on 23.7.1952, also known as the **Treaty of Paris** or the Coal and Steel Treaty (hence then the **Coal and Steel Union**).
- Was concluded for a period of 50 years, expired and its content was transferred to the general regulations.
- With the Treaty, the coal and heavy industries of the participating states were hived off and placed under the administration of the so-called "*High Authority*".



Historical development of the EU

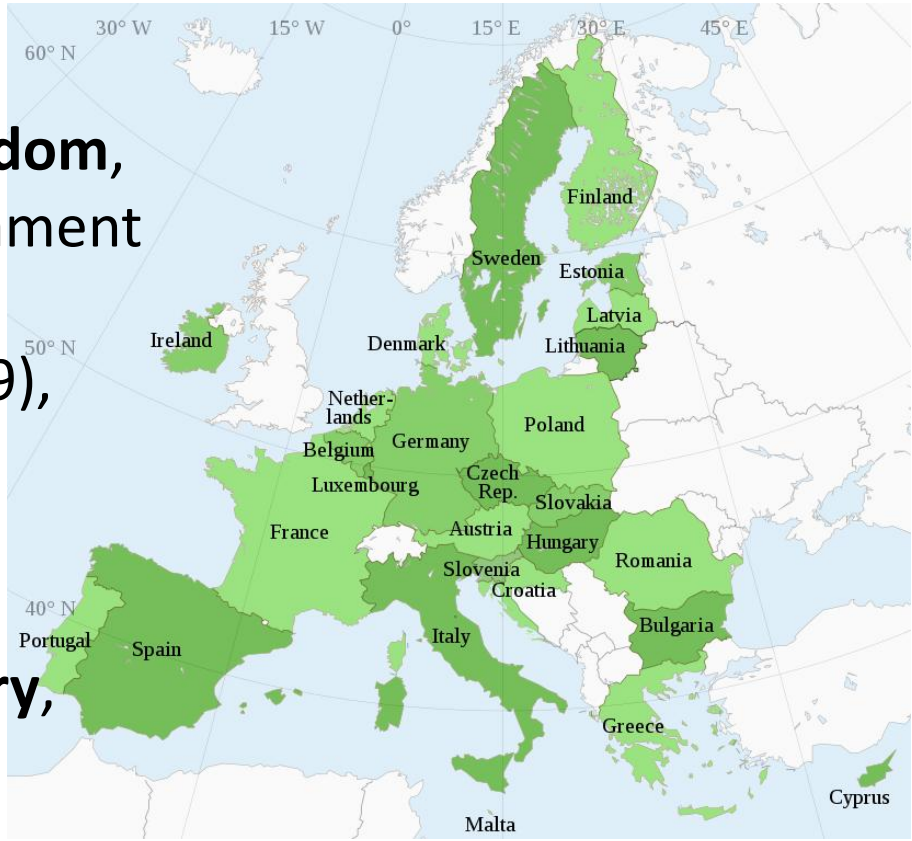
- Then **European Defence Community** and **European Political Community** envisaged, difficult to realise
- Concentration on economic issues
- Idea of a **nuclear energy union**
- On 25.3.1957, the 6-member group of the European Coal and Steel Community was able to sign the texts of the Treaty establishing the **European Economic Community** (EEC Treaty) and the Treaty establishing the **European Atomic Energy Community** (Euratom Treaty) in Rome, the so-called **Treaties of Rome**.
- Entry into force on 1.1.1958

Historical development of the EU

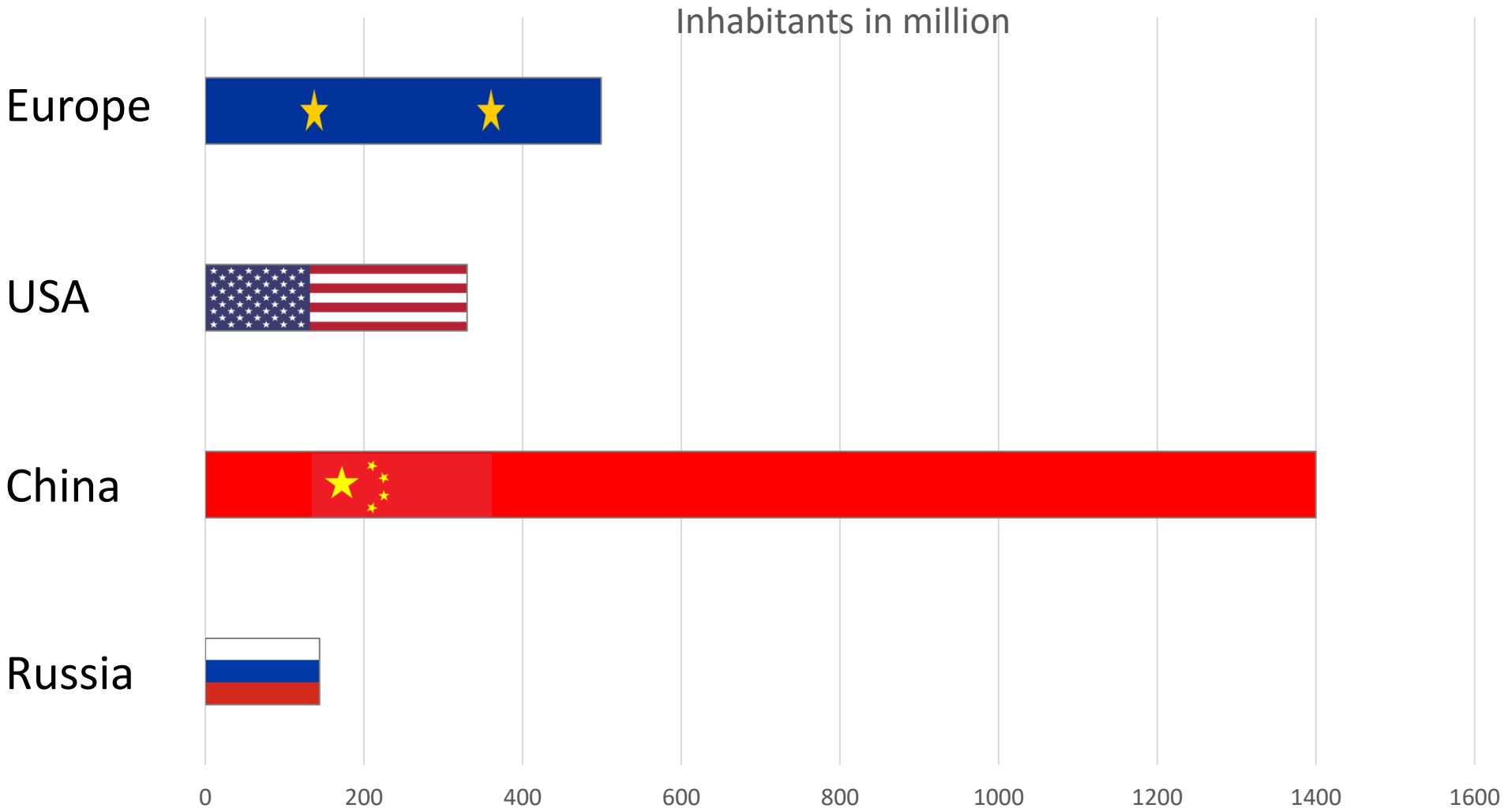
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Further development and enlargement of the **European Community** (EC)

- 1969: Applications for membership from the **United Kingdom**, **Ireland**, **Denmark** - ~~Norway~~ did not pass the plan in parliament - 1973 resulting in enlargement to the 9-member group
- 1976/77: Applications for membership from **Greece** (1989), **Spain** (1989), **Portugal** (1986)
- 1990: **German Reunification** leads to unexpected growth
- 1995: **Sweden**, **Finland**, **Austria**
- 2004: **Poland**, **Czech Republic**, **Slovakia**, **Slovenia**, **Hungary**, **Estonia**, **Latvia**, **Lithuania**, **Cyprus**, **Malta**
- 2007: **Romania** and **Bulgaria**
- 2020: Withdrawal of the ~~**United Kingdom**~~



Historical Development of the EU



Historical Development of the EU

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From the European Community to the European Union

Maastricht Treaty

- 7.2.1992, entry into force 1.11.1993 - foundation stone for monetary union, which began on 1.1.1999 with the introduction of the euro, cooperation in foreign and security policy as well as in domestic and legal policy

Amsterdam Treaty

- In force since 1.5.1999, Treaty is from 2.10.1997
- Attempt at institutional reforms in preparation for eastward enlargement, but not achieved, but progress in integration
- Further development of intergovernmental cooperation

Historical Development of the EU

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From the European Community to the European Union

Treaty of Nice

- On 26.2.2001 - Signed
- Frequent mention of the European Charter of Fundamental Rights, no connection, only also proclaimed in Nice
- Extension of qualified majority voting (certain set of votes - 2/3 majority or ¾ majority)
- Modernisation of the ECJ

European Constitution

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Failure of the European Constitution to come into being

Attempt at a European Constitution - 29.10.2004 signed in Rome, but in various countries the citizens were against it in referendums.

Reasons:

- general disenchantment with politics
- Fear and alienation before the big enlargement
- Project not taken up again

Historical Development of the EU

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Completion through the Lisbon Treaty

- Entered into force after various hurdles on 1.12.2009
- Abandonment of the pillar model
- EU replaces EC and former EU and acquires legal personality
- Content of all former pillars combined in TEU and TFEU, identical in rank
- Charter of Fundamental Rights binding in the same rank



Historical Development of the EU

- Innovation of the summarised contents of all pillars
- Competence framework formulated
- Democratic principles formulated
- President of the European Council as new office
- High Representative CFSP (Community Foreign and Security Policy) with new powers
- Institutional reforms, above all upgrading of the European Parliament
- Participation of national parliaments
- Citizens' initiatives for legislation
- Strengthening of qualified majority voting



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Three pillars of the European Union

Hierarchy of Norms

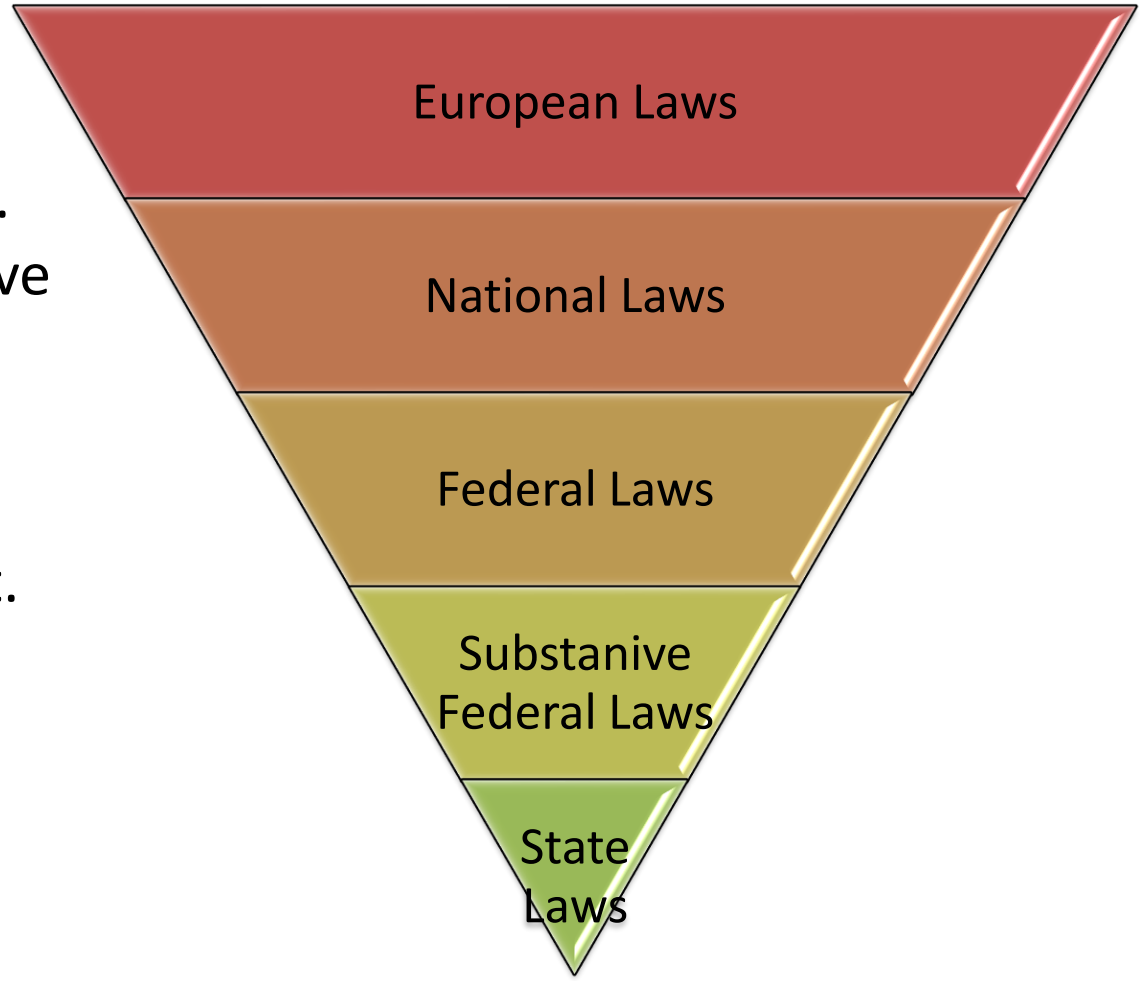
European law overrides/breaks national constitutions.
Constitutions override/break formal federal laws.
Formal federal laws break/stand above substantive federal laws.

What are formal federal laws?

- Laws passed by the Bundestag pursuant to Art. 77 GG

What are substantive federal laws?

- Statutes and ordinances (implementing provisions of formal laws)



Foundations of EU interaction

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Values: see Art. 2 TEU, Art. 3 TEU and Art. 10 TEU

European Charter of Fundamental Rights and **European Convention on Human Rights**

Principles of competence

- Limited individual authorisation always specific transfer of competence to EU necessary, only not in the case of precisely defined conditions in the individual case - with rounding-off competence (Treaty rounding-off competence, also called "*flexibility clause*" (Art. 352 TFEU)
- Coherence
- Subsidiarity - regulation at appropriate level
- Proportionality - content etc. must not go beyond what is necessary
- Loyal cooperation

Foundations of EU interaction

Competence catalogues

Exclusively: customs union, competition rules in the internal market, monetary policy of the EU states, common trade policy and conservation of marine biological resources.

Shared: Internal market, social policy, agriculture, fisheries, environment, consumer protection

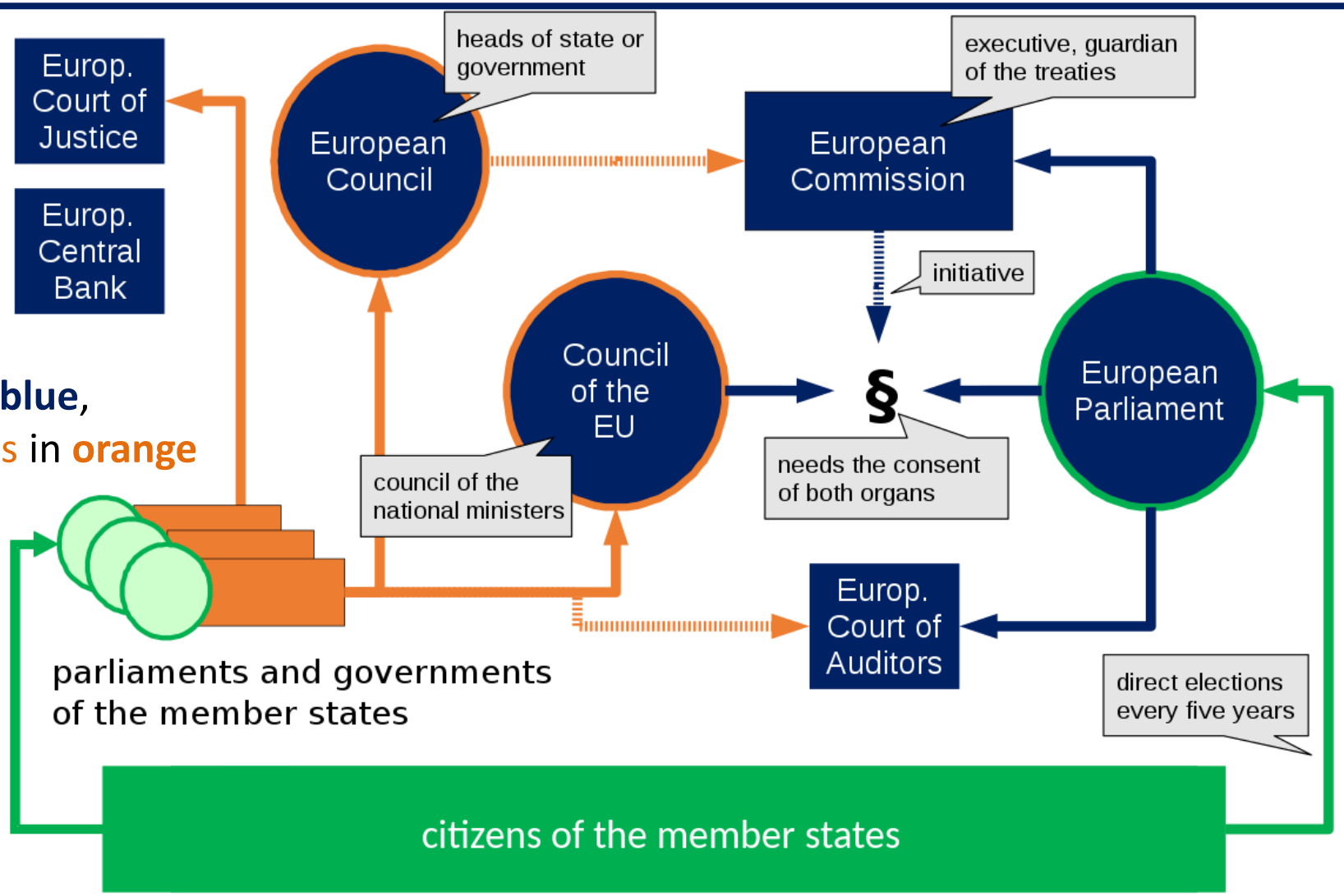
Supportive: sport, youth, vocational training, health protection, culture, tourism, industry

Special foreign and security policy arrangements
No mutual liability for obligations
Withdrawal from the EU and treaty changes

Organigram of the Political System

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the seven institutions of the Union in **blue**,
national / intergovernmental elements in **orange**



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EU Institutions

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Seven institutions (Art. 13 para. 1 TEU):

1. **European Parliament** - Strasbourg, parts of the General Secretariat in Luxembourg.
2. **European Council** - no seat
3. **Council** - seat in Brussels, but meets in Luxembourg in April, June and October
4. **Commission** - seat in Brussels with services in Luxembourg
5. **Court of Justice** - Luxembourg
6. **Central Bank** - Frankfurt am Main
7. **Court of Auditors**

Seven Institutions of the EU

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European Parliament - Strasbourg, parts of the General Secretariat in Luxembourg.

- acts with the Council as legislator
- shares budgetary powers with the Council and, in the last resort, adopts or rejects the general budget
- exercises democratic control over all EU institutions, including the European Commission, and appoints Commissioners
- consists of 751 MEPs elected by EU citizens
- Seat in Strasbourg, Secretariat-General in Luxembourg



Seven Institutions of the EU

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2. European Council - without a seat

- "Summit" meeting of the Heads of State or Government, chaired by the President of the European Council.
- Provides the Union with the necessary impetus for its development and defines general objectives and priorities.
- Does not legislate
- Seat in Brussels
- lays down the foundations of European policy, does not legislate
- Composition: Heads of state and government of the member states, president, presidents of the commissions, approx. twice a year and in cases of urgency
- Not to be confused with the **Council of the European Union** or even the **Council of Europe**.

Seven Institutions of the EU

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3. Council - based in Brussels, but meets in Luxembourg in April, June and October.

- Council of the European Union is the legislature (chamber of states)
- acts as legislator with the Parliament
- exercises budgetary powers with Parliament
- ensures the coordination of the broad economic and social policy guidelines and lays down guidelines for the Common Foreign and Security Policy (CFSP)
- concludes international treaties
- Seat in Brussels

Seven Institutions of the EU

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- Appointments and personnel decisions (Court of Auditors, Economic and Social Committee, members of specialised courts (Art. 286 II, 302 II; 257 IV TFEU)
- Powers vis-à-vis the member states within the framework of monetary union
- Decision-making extremely complicated with qualified majority (unanimity, simple majority - by heads), great debate, small member states, population, area, from 1.11.2014 applies:
- 55% of member states, at least 15, 65% of total EU population, 4 member states can form blocking minority (Art. 16 IV TEU).
- Art. 16 para. 2 TEU one representative of each member state
- Initiative (limited - can ask Commission to take action, Art. 241 TFEU)
- Legislation (in all important areas) together with the Parliament (Art. 16 para. 1 TEU), Council usually acts on the proposal of the Commission.
- External relations (decisions, conclusion of agreements, Union third countries, international organisations)
- Budget (together with Parliament) and control

Seven Institutions of the EU

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4. Commission - seat in Brussels with services in Luxembourg (executive).

- is the "government”
- submits proposals for new legislation to Parliament and Council (sole right of initiative)
- implements EU policy and manages the budget
- ensures compliance with EU law ("guardian of the Treaties")
- negotiates international treaties
- One commissioner per country
- Based in Brussels

Seven Institutions of the EU

- 38,000 employees, may not take instructions from governments, independent, 27 members one person per state
- Monopoly on initiative, "motor" of legislation
- Legislation (in subordinate areas) together with Parliament, authorisation by European Parliament
- External relations (negotiations and contract management, international agreements)
- Type of European government



Seven Institutions of the EU

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5. Court of Justice - Luxembourg (Judiciary Art. 19 TEU, Art. 251-281 TFEU)

- ensures uniformity in the interpretation of European law
- has the power to rule on legal disputes between EU member states, EU institutions, companies and private individuals
- one judge per country
- Seat in Luxembourg
- The Court of Justice of the EU is to be distinguished from the Strasbourg European Court of Human Rights (ECtHR). The ECtHR does not watch over compliance with EU law, but with the ECtHR.
- According to Art. 19 (1) p. 2 TEU, the task of the Court of Justice is: "It shall ensure that the law is observed in the interpretation and application of the Treaties".

Seven Institutions of the EU

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6. **Central Bank** - Frankfurt am Main (governed by Art. 282-284 TFEU)

- Forms the European System of Central Banks together with the national central banks and thus determines the monetary policy of the EU
- ensures price stability in the Eurozone by controlling the money supply
- Headquarters in Frankfurt am Main



Seven Institutions of the EU

7. **Court of Auditors** (regulated in Art. 285-287 TFEU)
Independent control body: Court of Auditors
Audits the legality and proper use of revenue and expenditure of the EU institutions.
Seat in Luxembourg

EU Institutions

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Other institutions

- Economic and Social Committee (Art. 13 para. 4 TEU, 300-304 TFEU), participation in the legislative process, contact with civil society, interest groups
- Committee of the Regions (Art. 13 para. 4 TEU, Art. 300, 305-307 TFEU), legislative procedure, regional interest groups
- European Investment Bank (Art. 308-309 TFEU), lending to structurally weak areas

Overview of EU Legal Sources

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1. Primary Union Law (founding treaties: EU, TFEU, EAEC; Protocols to the Treaties, general legal principles of Union law, Charter of Fundamental Rights.
2. Agreements of the Union with third countries and international organisations, rules of general international law (and obligations under the UN Charter)
3. Secondary Union Law

- Regulations
- Directives
- Decisions
- Recommendations and opinions

Overview of EU Legal Sources

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1. Primary Union Law

- Founding treaties including annexes and protocols, currently Treaty of the European Union (TEU) and Functioning of the European Union (TFEU) as amended by the Lisbon Treaty.
- Agreement under international law in which the member states bind themselves
- Charter of Fundamental Rights

Overview of EU Legal Sources

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2. Secondary Union Law

- Listed in Art. 288 TFEU:
- Regulations, directives, decisions (formerly decisions, recommendations and opinions).
- Other formalised legal acts, e.g. resolutions, declarations, programmes, etc. - so-called "soft law", i.e. not enforceable

Overview of EU Legal Sources

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Secondary Union Law: Regulations

- Regulation is issued by the Council together with the European Parliament and the Commission.
- Corresponds to laws at national level
- Regulation applies directly in the member states, i.e. no further participation by the member states through legislative bodies is necessary.

Overview of EU Legal Sources

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Secondary Union law: Directive

- Directives are also issued by the Council together with the European Parliament and, less frequently, by the Commission.
- Directives must be "transposed" into the respective national law, i.e. in contrast to regulations, the respective legislative bodies must be involved
- Directives are therefore only binding with regard to their objectives, in principle they have no direct effect.

Overview of EU Legal Sources

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2. Secondary Union Law: Decisions

- Decisions belong to individual regulations and therefore, in the strict sense, not to sources of law (which are abstract in nature).
- Regulated in Art. 288 TFEU, secondary law
- Issued by European Council, Council, Parliament and Commission
- Decisions are typical legal acts of the Commission as an administrative authority vis-à-vis private persons, corresponding to the German Verwaltungsakt (VA) (administrative act)
- Decisions are binding in all parts for the addressee, have direct effect and can be enforced, but only through national procedures, as there is no European bailiff

Overview of EU Legal Sources

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2. Secondary Union Law: Opinions and Recommendations

- Recommendations and opinions play only a subordinate role.
- They are not binding and serve more as a political statement of intent.
- Recommendations come from the respective institutions (Council, Parliament, Commission etc.)
- Opinions, when other institutions have asked for an opinion "*on something*".

EU Legal Order

Legal Nature

Not in the classic classification of international law or state-law connections between states, but supranational law.

A distinction must be made in the case of connections of states:

- **Confederation of states**: association of sovereign states
- **Federal state**: State consisting of several member states, e.g. the Federal Republic of Germany.
- **Union of states**: a hybrid of the confederation of states and the federal state, used in Germany for the EU.

2. Relationship between Union law and national law

2.1 Primacy of Union law

- Member states must do everything possible to apply and enforce Union law - so-called "*effet utile*" principle, as in the case of national procedural rules.
- German Federal Constitutional Court sees things differently in part, in the so-called "*Maastricht judgement*" (BVerfG, 12.10.1993, BVerfGE 89, 155, NJW 1993, pp. 3047), the BVerfG claims to refuse to follow the European institutions in the case of "obvious overstepping of competences", as also in the judgement on the Lisbon Treaty from 2009 (BVerfG, 30.6.2009, 2 BvE 2/08, BVerfG NJW 2009, p. 2267 ff.).

2. Relationship between Union law and national law

2.2. Direct applicability of Union law

- Every citizen of the Union can directly invoke Union law before a national court.
- Problem with directives, as they are only binding as to their objective.
- No direct application within the transposition period (usually 2-3 years).
- After the deadline, various cases possible:
- Member state has complied with transposition, then no problem

2. Relationship between Union law and national law

Member State has not complied with the Directive or has done so incorrectly, then:

1. Direct effect is assumed if legal relationship state-citizen, directive is sufficiently precise and citizen is not burdened (vertical direct effect).
2. Not assumed if two private individuals are in conflict (no horizontal direct effect).
3. Interpretation in conformity with directive, can come close to horizontal direct effect
4. Directive provision is imprecise, in which case the member state may be liable.

2. Relationship between Union law and national law

2.3. Liability of Member States in case of infringement of Union law

- For the first time in the so-called Francovich judgement (ECJ, judgement of 19.11.1991, C-6/90 and C-9-90 [1991] ECR I-5357).

EU Legal Order

Francovich Judgement (ECJ, judgement of 19.11.1991, C-6/90 and C-9-90 Coll. p. I-5357)

Mr **Francovich**, Ms **Bonifaci** and some colleagues could not have their outstanding wage claims reimbursed when their employer went bankrupt. Italy had failed to transpose a directive stating that in such cases a default fund must ensure the payment of wages. The workers then sued the Italian state directly for compensation. The competent court referred the case to the ECJ.

Francovich v Italy
https://en.wikipedia.org/wiki/Francovich_v_Italy



Francovich Judgement

Decision:

The ECJ ruled in favour of the plaintiffs. Member States that fail to transpose directives within the prescribed period are liable to pay compensation to individuals if
(1) the objective of the directive involves conferring rights on individuals,
(2) the content of those rights can be determined on the basis of the directive, and
(3) there is a causal link between the breach of duty and the damage.

EU Lawmaking

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Principle of conferral of powers:

The EU differs from a state above all in that it has no competences, i.e. it cannot simply draw competences to itself like a state. Rather, it is only entitled to competences if and to the extent that it is authorised to do so under primary Union law, i.e. under the Treaties and thus ultimately by the member states.

EU Lawmaking

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Subsidiarity Principle according to Art. 5 para. 1 TEU

The principle of conferral applies to the delimitation of competences between the Union and the Member States!
The principles of subsidiarity and proportionality apply to the exercise of the Union's competences.
→ Measures must not go beyond what is necessary.

Subsidiarity principle is a barrier to the exercise of competences (Protocol No. 2 of 13.12.2007, Nomos-Texte No. 3).

EU Lawmaking

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According to Art. 2 TFEU:

- Exclusive jurisdiction (Art. 2(1), Art. 3 TFEU)
- Shared competence (Art. 2 (2), Art. 4 TFEU)
- Supporting competence (Art. 2 (5), Art. 6 TFEU)
- Determination of the coordination of the economic and employment policies of the Member States (Art. 2 (3), Art. 5 TFEU)
- Competence of the CFSP (Art. 2 para. 4 TFEU)

EU Lawmaking

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Ordinary Legislative Procedure (Art. 289 (1) TFEU)

- Procedure (Art. 294 TFEU): Initiative proposal from the Commission is forwarded to the European Parliament and the Council and, depending on the competence norm, to the Economic and Social Committee and the Committee of the Regions for their opinion.
- The European Parliament presents its position in the 1st reading and forwards it to the Council.
- If the Council approves the position, the legal act is adopted.
- Otherwise, the Council shall adopt its position at 1st reading and forward it, together with the reasons therefor, to the European Parliament for 2nd reading.

EU Lawmaking

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Ordinary Legislative Procedure (Art. 289 (1) TFEU)

- If the European Parliament approves the Council's position at 2nd reading within 3 months or remains silent, the act shall be deemed to have been adopted.
- (...)
- If these majorities are not achieved, the legislative procedure is deemed to have failed; if they are achieved, the act is adopted.
- Legislative procedure similar to the German legislative procedure

EU Lawmaking

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Enforcement of EU Law:

- **Direct enforcement**, Union-immediate enforcement
- In addition to internal Union matters, such as personnel matters, budget implementation, competition law according to Art. 101 ff. TFEU
- **Indirect enforcement**
- Union law is predominantly enforced by Member States, which are obliged to do so under Article 4 (3) TEU.

EU Lawmaking

Legal Protection:

According to Art. 19 TEU, the three Union courts (ECJ, since 1989 CFI and since 2005 CST = European Civil Service Tribunal of the EU) have the task of upholding the law and ensuring the interpretation and application of the Treaties.

Various types of proceedings are provided for this purpose:

- Infringement proceedings
- Action for annulment
- Action for failure to act
- Action for damages
- Preliminary ruling procedure

EU Policies

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Market Freedom:

1. **Customs Union** (Art. 28 et seq. TFEU)
- Abolition of all import and export duties between the member states Establishment of a common customs tariff and unification of non-tariff customs law.

2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU)

2.1. Basically broad scope of application according to the "*Dassonville formula*": it includes "any trade regulation of the member states which is capable of hindering, directly or indirectly, actually or potentially, intra-Community trade".

EU Policies

2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU).
"Dassonville formula":
Dassonville (ECJ, Judgment of 11.7.1974, 8/74, ECR p. 837).

The Belgian customs authorities required a special certificate of origin for the import of whisky in order to ensure that consumers received goods with typical quality characteristics.
The importer Dassonville, who distributed whisky that had not been imported directly from the country of origin, could only obtain such certificates with considerable difficulty and found that he was discriminated against by the regulation. He invoked Article 28 EC (now Article 34 TFEU).

EU Policies

2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU).

The ECJ upheld Mr Dassonville, stating that the term "measure having equivalent effect to a quantitative restriction" covers any trade regulation of the Member States which is capable of hindering, directly or indirectly, actually or potentially, intra-Community trade. The requirement for a certificate of origin was also included in this category.

Procureur du Roi v Benoît and Gustave Dassonville
https://en.wikipedia.org/wiki/Procureur_du_Roi_v_Beno%C3%AEt_and_Gustave_Dassonville

EU Policies

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2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU).

2.2 Qualification of the measure as distribution-related or product-related

- According to the "Keck" case law, only distribution-related measures do not fall within the scope of Art. 34 TFEU, unless they are discriminatory or completely foreclose the market

EU Policies

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EU Policies

2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU)

"***Keck***" Case Law
Keck and **Mithouard** (ECJ, Judgment of 24.11.1993, C-267/91 and C-268/91, ECR p. I-6097)
Two supermarket operators in Strasbourg, Mr Keck and Mr Mithouard, who had sold coffee below cost, were penalised because this is prohibited in France. They argued that the loss-making sale of individual items was a necessary sales practice, the prohibition of which entailed considerable disadvantages, and that they were discriminated against in the sale of imported goods compared to competitors from other member states (e.g. in Germany below cost selling is allowed).

EU Policies

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2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU)

The ECJ stated that under Art. 28 ECT (now: Art. 34 TFEU) not every regulation can be objected to which has the effect of restricting the freedom to conduct a business.
The prohibition of Art. 28 ECT is to be limited insofar as it concerns national provisions that only restrict/prohibit certain sales modalities.
If these apply equally to domestic and foreign goods, market access is not completely blocked in the rules and the scope of application of Art. 28 ECT is not opened.

EU Policies

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2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU)

2.3. Exception or justification grounds

- Art. 36 TFEU: public policy and public security, health protection, cultural goods, protection of industrial property, etc., e.g. certain pharmaceutical regulations.
- According to the "*Cassis de Dijon*" case law of the ECJ, additional "*imperative requirement*" of effective fiscal control, fairness of trade, consumer and environmental protection, etc.; possibly also economic reasons such as the financial structure of the health care system.

EU Policies

2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU)

"***Cassis de Dijon***" case law of the ECJ
REWE-"Cassis de Dijon" (ECJ, Judgment of 20.2.1979, 120/78, ECR p. 649)
The company REWE wanted to import the French blackcurrant liqueur "*Cassis de Dijon*" into Germany. This was refused on the grounds that, for reasons of consumer protection, fruit juice liqueurs are only permitted in Germany if they have a minimum alcohol content of 25%, which is not the case with the French light-percentage drink.

EU Policies

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2. Prohibition of measures having equivalent effect to quantitative restrictions on imports (Art. 34 et seq. TFEU)

The ECJ rejected this argumentation as absurd and argued that, in principle, all goods that are legally produced in one Member State may also be marketed in this way in another Member State. In addition, in this decision it also lays the foundation for new grounds of justification for Article 34 TFEU: *"Only such obstacles to trade are to be accepted as are necessary in order to satisfy overriding requirements, in particular those relating to effective fiscal supervision, the protection of public health, fair trading and consumer protection."*

EU Policies

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Free movement of workers:

Free movement rights (Art. 45 TFEU and Regulations No. 1612/68)

Concept of worker is not defined, but:
Workers are persons who, for a certain period of time, perform services for another under instructions for which they receive remuneration in return).
Prohibited in the case of migrant workers is any unequal treatment with regard to:

- Employment
- Remuneration
- Other terms and conditions of employment
- Other benefits granted to workers of a Member State or to members of their families

EU Policies

Freedom of establishment
Freedom to provide services
Free movement of payments and capital

Current EU Issues

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- Brexit
- Russian Aggression
- European Army
- Strategic Compass
- OBOR
- COVID
- Energy
- Climate Change
- Digitalisation
- Economic Recovery
- Authoritarian Drift of Hungary and Poland
- Migration



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